

HOUSE No. 812

The Commonwealth of Massachusetts

PRESENTED BY:

Mike Connolly

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to transparent political campaigning.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>1/16/2025</i>

HOUSE No. 812

By Representative Connolly of Cambridge, a petition (accompanied by bill, House, No. 812) of Mike Connolly relative to transparent political campaigning. Election Laws.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 672 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to transparent political campaigning.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 55 of the General Laws is hereby amended by striking
2 the definition of “Electioneering communication” and inserting in place thereof the following:-

3 "Electioneering communication", any broadcast, cable, mail, satellite, print, SMS text
4 message, MMS text message or other text message communication that: (1) refers to a clearly
5 identified candidate; and (2) is publicly distributed within 90 days before an election in which
6 the candidate is seeking election or reelection; provided, however, that "electioneering
7 communication" shall not include the following communications: (1) a communication that is
8 disseminated through a means other than a broadcast station, radio station, cable television
9 system or satellite system, newspaper, magazine, periodical, billboard advertisement, SMS text
10 message, MMS text message, other text message or mail; (2) a communication to less than 100

recipients; (3) a news story, commentary, letter to the editor, news release, column, op-ed or editorial broadcast by a television station, radio station, cable television system or satellite system, or printed in a newspaper, magazine, or other periodical in general circulation; (4) expenditures or independent expenditures or contributions that must otherwise be reported under this chapter; (5) a communication from a membership organization exclusively to its members and their families, otherwise known as a membership communication; (6) bonafide candidate debates or forums and advertising or promotion of the same; (7) email communications; and (8) internet communications which are not paid advertisements.

SECTION 2. Section 18G of chapter 55 of the General Laws is hereby amended by inserting a new paragraph after the second paragraph that states the following:

An independent expenditure or electioneering communication made by an individual, corporation, group, association, labor union or other entity which is transmitted through SMS text message, MMS text message or other text message shall include within the message a written statement disclosing the identity of the individual, corporation, group, association, labor union or other entity paying for the communication and the words "Top Contributors" and a written statement that lists the 5 persons or entities or if fewer than 5 persons or entities, all persons or entities that made the largest contributions to that entity, regardless of the purpose for which the funds were given; provided, however, that only contributions in excess of \$1,000 reportable pursuant to this chapter during the 12-month period before the date of the advertisement or communication shall be listed. If no such contribution is received by the entity making an independent expenditure or electioneering communication, the advertisement or communication may exclude the statement. The communication shall also include a written statement, as specified by the director, at the bottom of the communication that directs viewers to

34 the official web address of the office of campaign and political finance. This paragraph shall also
35 apply to communications purchased to influence or affect the vote on a question submitted to the
36 voters.